

OFFICE OF THE SECRETARY

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January 25, 2019

The Honorable Lydia M. Villarreal
Judge of the Superior Court
County of Monterey
240 Church Street
Salinas, CA 93901

Re: Bernard Topper
CDC No: K94377
Case No: SS972294
Date of Sentence: April 23, 1997

Dear Honorable Lydia M. Villarreal:

The purpose of this letter is to provide the court with authority to resentence for, inmate Bernard Topper, pursuant to Penal Code Section 1170, subdivision (d)(1). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Topper is commended for remaining disciplinary free since his arrival to CDCR in May 1998. Inmate Topper's crimes appear to be the result of a heroin dependency and a review of his file shows he has taken advantage of various programs to help overcome his addiction, including Narcotics Anonymous, Alcoholics Anonymous, Substance Abuse Recovery, and Re-entry programs.

Various staff at the Folsom State Prison and the California Substance Abuse Treatment Facility, including the Investigative Services Unit (ISU), work supervisors and housing unit staff have been interviewed in regards to inmate Topper's current programming and behavior. Staff stated that inmate Topper is a model inmate who is very respectful to staff and never causes any problems. Staff also noted that inmate Topper has never been in trouble during his incarceration.

Staff from ISU stated inmate Topper is not suspected of any gang involvement, participation in illegal activity or the subject of any investigation by ISU.

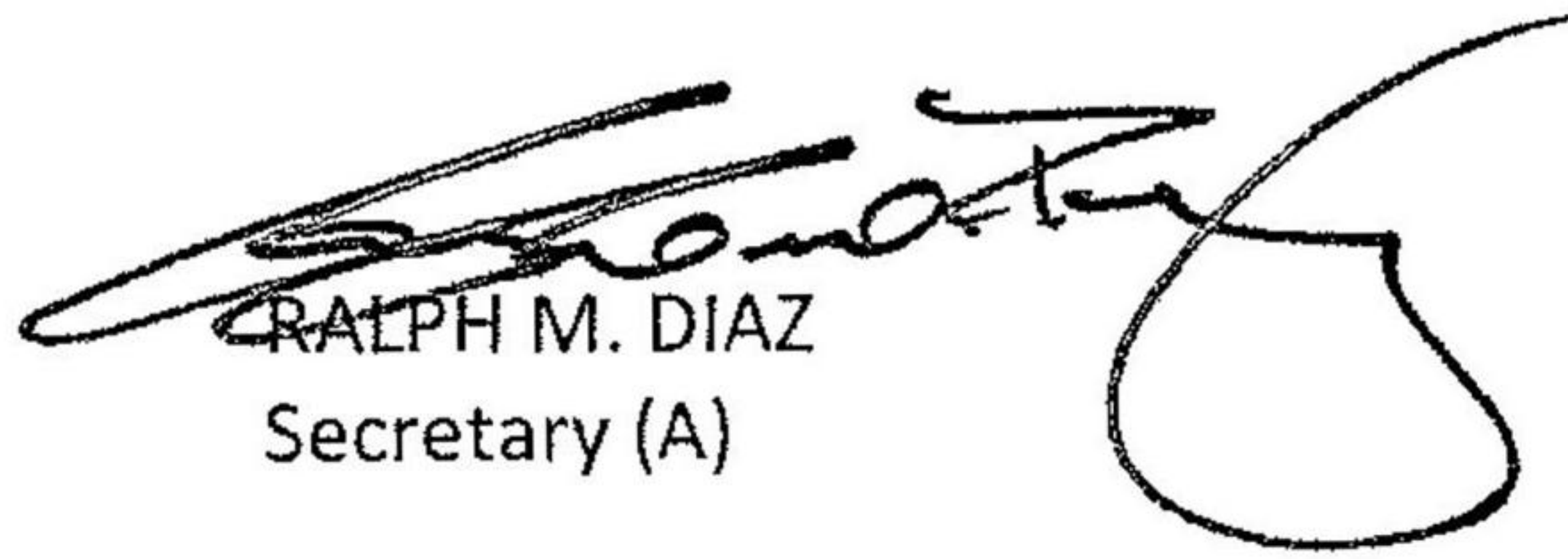
Staff assigned to the ISU also stated that inmate Topper is very respectful of staff and other inmates.

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Having reviewed the enclosed documentation it appears that inmate Bernard Topper's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend inmate Topper's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Chris Ruhl, County Court Executive Officer
Monterey County District Attorney's Office
Monterey County Public Defender's Office